

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by the SECRETARY OF STATE FOR SECURITY (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 18, 2024, and based on the following

FACTS

FIRST: On April 18, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202211394, by virtue of which the SECRETARY OF STATE FOR SECURITY was imposed:

“FIRST: DECLARE that the SECRETARY OF STATE FOR SECURITY, with NIF S2816001H, has committed the following infractions provided for in LO 7/2021

- Infraction of Article 20 of LO 7/2021, classified in Article 59 f)
- Infraction of Article 35 of LO 7/2021, classified in Article 59.l)
- Infraction of Article 41 of LO 7/2021, classified in Article 59.e)

SECOND: ORDER the SECRETARY OF STATE FOR SECURITY, with NIF S2816001H, to, pursuant to Article 62 of LO 7/2021, from the moment this resolution becomes final and enforceable, prove that it has complied with the following corrective measures within the time frame indicated below:

- Include, within a maximum period of three months, the information on data protection required by Article 21 of LO 7/2021 in all documents and/or proceedings provided to victims at the time their personal data is to be processed, so that the obligation provided in Article 20 of that regulation is effectively fulfilled.
- Implement, within a maximum period of three months, the necessary measures to ensure the autonomy and independence of the DPD and thereby avoid any situation that may create a conflict of interest.
- Proceed, within a maximum period of six months, to carry out and pass the Data Protection Impact Assessment in the terms and with the minimum content required by Article 35 LO 7/2021.”

This resolution, which was notified to the appellant on April 19, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.”

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00382/2023, the following was recorded:

“FIRST: Through the diligence carried out by the acting inspector during the course of the investigative actions conducted on February 28, 2023, it was noted that through access to the URL ***URL.1 found within the website of the Ministry of Interior, one accesses a page that offers the following sections related to Violence against women:

- “VioGén System
- Data Deletion VioGén System
- News and Events
- Legal Framework
- Publications
- VioGén system statistics
- Links of interest”

“The Comprehensive Monitoring System in cases of Gender Violence (VioGén System), of the Secretary of State for Security of the Ministry of Interior, was put into operation on July 26, 2007, in compliance with the provisions of Organic Law 1/2004, of December 28, 'on Comprehensive Protection Measures against Gender Violence', with the following objectives:

- To bring together the different public institutions that have competencies in the area of gender violence

- To integrate all relevant information deemed necessary
- To predict risk
- Depending on the level of risk, to monitor and protect victims throughout the national territory
- To carry out preventive work, issuing warnings, alerts, and alarms, through the 'Automated Notification Subsystem', when any incident or event that may endanger the victim's integrity is detected.
- Finally, to seek to establish a dense network that allows for the rapid, comprehensive, and effective monitoring and protection of abused women and their children, anywhere in the national territory.”

Likewise, regarding the section “Data Deletion VioGén System” pursuant to the aforementioned diligence, it has been established that the following information appears:

- “The VioGén System (Comprehensive Monitoring System for Cases of Gender Violence) is a processing of personal data whose responsible party is the head of the General Directorate of Coordination and Studies of the Ministry of Interior.
- This processing develops the necessary activities to guarantee the safety and protection of victims of gender violence, facilitate the monitoring of the measures applied, and prevent activities.

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Criminal acts related to gender violence with the aim of protecting such victims and preventing criminal offenses against women who may be passive subjects of such conduct.

- The individuals considered interested in this file will be the victims of acts that may be classified as gender violence and the individuals involved in judicial proceedings and investigations related to those same acts, without such inclusion prejudging the right to the presumption of innocence, a matter that will be resolved by the competent Judicial Authorities.
- Information about this file and all related to how interested parties can exercise their rights can be obtained in detail on the website.
- Given the purpose of this processing and its description, in correspondence with the fundamental rights subject to weighting, regarding the exercise of the right to erasure, it should be noted that the data registered in the VioGén System will be retained in accordance with Article 8 of the LOPDP and will only be erased at the request of the interested parties in those cases where there is a firm judicial resolution of definitive dismissal, a firm acquittal sentence, and the cancellation of the criminal (judicial) records derived from the same.
- However, requests for data erasure may be denied when the data remains necessary for the achievement of the purposes for which it was collected (protection of victims and prevention of criminal offenses related to gender violence), or when there has been any reiteration, recidivism, or breach of judicial measures or penalties. Without prejudice to applying Article 24 of the LOPDP if necessary and justified to apply any restriction to the rights of information, access, rectification, erasure of personal data, and limitation of its processing.
- In relation to the above, it is essential to provide the certified documentation that proves the firmness of the resolutions and the conclusion of the proceedings (acquittal sentence, filing, dismissal, or execution of compliance with the sentence (for these cases, prior accreditation of the cancellation of the criminal record is required).
- The forms may be submitted, for validation and mandatory registration, at any National Police or Civil Guard office, as well as at any office of the Delegations or Subdelegations of the Government, existing in each province, through the General Electronic Registry of the General Administration of the State in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.
- Applications will be responded to within one month, although, considering the complexity and number of applications, the deadline may be extended for another two months (which will be communicated to the interested party).”

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By clicking the "website" link in the fourth paragraph of the transcribed text, it is also confirmed that the following sections appear:

- "Applicable regulations
- How to exercise your rights
- Record of Treatment Activities
- Data Protection Delegates of the Ministry of the Interior"

Additionally, on that page, the following documents are available for download in PDF format:

- "Form for exercising personal data protection rights for the Comprehensive Monitoring System of Gender Violence Cases.
- General form for exercising personal data protection rights (not valid for police records)
- Record of treatment activities of the Ministry of the Interior"

It is confirmed that by selecting the section "How to exercise your rights," the following information is displayed:

- "Interested parties may exercise the rights of access, rectification, erasure, limitation of processing, opposition, and data portability, in accordance with the provisions of Articles 15 to 22 of the General Data Protection Regulation, and the rights of access, rectification, erasure, and limitation in accordance with Articles 20 to 25 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions.
- Each Directorate of the Ministry of the Interior may indicate, on its corresponding website or section, specific procedures for exercising the rights.
- HOW TO EXERCISE YOUR RIGHTS REGARDING POLICE RECORDS

To exercise the rights related to police records, a specific procedure has been established, available on the page ***PAGE.1.

- HOW TO EXERCISE THE REST OF THE RIGHTS OF TREATMENTS OF THE MINISTRY OF THE INTERIOR

For those treatments that do not have a specific procedure, in general, the rights can be exercised as follows:

- o First, you must download the General Form for exercising personal data protection rights (not valid for police records or gender violence) that is available at the end of this page, in the DOWNLOADS section.

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As an exception, to exercise the rights related to the Comprehensive Monitoring System for Cases of Gender Violence, follow the same procedure, keeping in mind that the form to download and fill out is the Data Protection Rights Exercise Form for VioGén, which is available in the DOWNLOADS section at the end of this page (***PAGE.2).

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Fill out the appropriate form correctly, specifying which treatment you wish to exercise your rights over (Data Controller and Name of the treatment) and which right(s) you wish to exercise. The necessary data to identify the specific treatment in the form (Name of the treatment and Data Controller) can be obtained from the Treatment Activities Registry document, available in the DOWNLOADS section, which lists the various treatments of the Ministry, grouped by Management Center.

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Incomplete forms that do not properly identify the Data Controller, the name of the treatment, and the rights to be exercised will not be accepted.

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Once the form is duly completed, it can be sent to the Data Controller through two different means:

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Through the electronic Registry, sending the form via the existing procedure at ***HEADQUARTERS.1 (requires a Digital Certificate and the ability to perform electronic signature via Java applet or Autofirma application).

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Or in person through the ***OFFICES.1 network, presenting the paper form.

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Requests sent by other means (such as postal mail or email) will not be accepted.

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You also have the right to file a complaint with the Spanish Agency for Data Protection: C/ Jorge Juan, 6. 28001. MADRID (www.aepd.es)

Within the document related to the Treatment Activities Registry of the Ministry of the Interior, the latest update dated 29/09/2023 establishes the Data Controller of the VioGén System as the Secretary of State for Security, General Directorate of Coordination and Studies. (hereinafter, SEG DGCE)

SECOND. The responding party provided during the investigative proceedings the "protocol for first police contact with victims of gender violence in a situation of lack of protection (protocol zero)."

Within this document, which is part of the administrative file of the present procedure, the following information regarding the first police contact with victims of gender violence is found:

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"The occasions when the personnel of the FFCCS acting on the front line of intervention with victims of gender violence obtain or can obtain information through statements from individuals at the scene and their direct observation are of great interest to improve the subsequent police risk assessment and thus activate the Police Protocol under the best conditions and all subsequent actions that may arise complementarily to enhance the comprehensive protection of victims and address their needs in accordance with the provisions of Instruction SES 4/2019. The information that, in many cases, those who carry out these interventions obtain, very guided in terms of immediacy, can be key in improving the procedures aimed at protecting especially vulnerable victims, limiting the loss of information through a structured protocol that clearly guides important tasks. In this way, the Action Guide of the Zero Protocol in Gender Violence describes very specific actions during the first police contact with victims of gender violence through the following axes:

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During the police intervention process, all aspects related to the safety of the victim and minors, if any, must be especially taken into account.

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The operational and documentary actions framed in this Zero Protocol are especially indicated for cases where the police personnel have been informed by the victim of their refusal to formally report at police stations, or have indications of this, regarding the circumstances that motivated events presumably related to an incident of gender violence, whether known for the first time or related to a breach of judicial measures.

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The acting force must pay special attention to the statements of individuals present at the scene, especially the victim, in accordance with the indicators and risk scenarios outlined in the Action Guide

attached to this instruction. In this regard, they will have a working document prepared for this purpose called the Action Guide of the Zero Protocol in Gender Violence.

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During the police intervention, those acting must assess the most appropriate moment, if deemed appropriate, to listen to the victim regarding what they wish to express and, if applicable, clarify regarding the circumstances that motivated the alleged criminal acts. In these cases, the information must be obtained in a private environment, away from minors.

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as with any other person. It should be taken as an opportunity to find out if they require specific assistance resources.

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In the case of minors in the care of the victim, the police personnel must verify whether the alleged events occurred in their presence and if they have suffered direct or indirect aggression and/or threats on this or any other occasion.

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Before leaving the scene of the intervention, those acting in the first instance must inform the victim of the nearby available phone numbers and resources, especially those that offer immediate attention and confidentiality.”

It is established that in the Annex of said Document, the Guide for Action of the Zero Protocol on Gender Violence is developed for the first contact with the victim of gender violence. It includes the following recommendations:

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“The following recommendations constitute a decalog that will allow obtaining highly valuable information to subsequently assess the risk of the gender violence victim and better understand aspects of vulnerability and lack of protection. It is especially aimed at cases where there are indications that, at least initially, the victim does not want to file a complaint. For this, observation as acting agents and the information obtained from the victim, the alleged aggressor, or any person who may provide relevant information in the context of the intervention in the field of gender violence is required.

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Request information from the victim in a private setting, away from minors and any other person. Also take the opportunity to find out if they require specific assistance resources.

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Try to obtain information through all available sources by means of statements from the present individuals and your observation (victim, witnesses, alleged aggressor, others).

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Be careful when obtaining information, prioritizing the safety of the victim and minors. Also, keep in mind that the victim's concern for their own safety may affect their ability to provide the necessary information.

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Pay attention to the environment and the individuals present. Rely on the experience of similar situations.

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In the event that the police intervention takes place in a home, pay attention to the surroundings to understand to what extent it can provide useful and valuable information.

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At no time suggest the meaning of the responses in cases where it is advisable and pertinent to ask any questions. Ask questions to any informant with skill and courtesy.

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Keep in mind that the most dangerous moment is when the alleged author discovers that the victim may attempt to end the relationship.

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There may be other indicators or circumstances that help in predicting a new aggression. Indicate this when appropriate.

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Try to find out if there are minors affected or in a vulnerable situation.

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Do not leave the scene without informing the victim of the nearby available phone numbers and resources, especially those that offer immediate attention and confidentiality.”

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“This Guide for Action for incidents of gender violence is framed within a procedure called Zero Protocol, which is aimed at improving the actions of police agents at the scene and is especially indicated for cases of police action with victims of an alleged crime of gender violence in which, due to various circumstances, there is suspicion that the victim will not come to provide a statement at police facilities. Due to its immediacy, the information obtained at the scene of the action is of great value due to the lack of information for conducting the police risk assessment that exists in some cases.

Remember the importance of this information as the main objective of this ‘contact protocol’ is to ensure the collection of a minimum amount of information quickly and directly, allowing for better subsequent completion of the Police Risk Assessment (VPR) and thus better adjust the potential risk of the victim and understand their level of vulnerability. Therefore, this document incorporates a decalog of specific recommendations related to the information available at each moment and situation.”

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“Due to the unique circumstances of this type of intervention and the risk scenario in which particularly vulnerable victims may find themselves, as much as possible, try to internalize the recommendations included in this action guide to be able to present with maximum detail after the action at the scene and thus improve the quality of the diligence of indicators of gender violence, paying special attention to the following indicators and risk scenarios:

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Inquire whether any episode of physical violence has occurred, even without injury. Please pay special attention to whether the victim may have suffered any aggression in the neck area.

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Inquire whether weapons have been used with the aim of attacking or threatening the victim and, if applicable, the...

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Type of weapon used. Regarding the threats, if they were verbalized, do they involve threats of death and/or suicide?

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Observe whether the spontaneous statements and/or verbalizations made by both the victim and the alleged aggressor, or other sources of information, suggest that this is not an isolated episode, but rather a repeated one, leading to a certain increase in violence or its chronicity.

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Pay attention to whether, with the information available at the scene, it seems that the current events or other prior incidents may be motivated wholly or partially by the jealousy of the alleged aggressor.

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Observe whether the statements or other information indicate the existence of any type of controlling and/or harassing behavior by the alleged aggressor, from their environment, as well as the family context of the victim.

- o Pay attention to whether during this or any previous police intervention, there have been recorded instances of disrespect or challenging behavior towards the acting police personnel by the alleged aggressor. On the other hand, also observe if there are damages at the scene caused by the alleged aggressor.
- o Observe and seek to know if the alleged aggressor presents any mental disorder and/or tends to be very impulsive or aggressive with behavioral alterations, especially noting if there are or have been ideas or attempts of suicide, as well as a possible addiction or abuse of substances, including alcohol.
- o Observe and pay attention to the spontaneous statements and/or verbalizations made by the victim to determine if they present any disability, depressive episodes, or other mental disorders, especially if they express ideas or attempts of suicide, as well as a possible addiction or substance abuse. Request, if possible and appropriate, any additional explanation regarding this to channel some type of help.
- o Inquire whether the information obtained during the intervention suggests that the victim has recently expressed to the aggressor their intention to end the relationship.
- o Observe and seek to know if from your observation or from the statements of the victim or third parties it can be inferred that the victim believes that the aggressor is capable of attacking them with great violence or even killing them.
- o Verify the possible existence of minors in the care of the victim and, if applicable, pay attention to whether there are any elements indicating that they have suffered threats to their physical integrity from the alleged aggressor, and/or whether the victim fears for their safety.

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It is established that there is no mention whatsoever regarding the rights of personal data protection for victims of gender-based violence, neither in the aforementioned protocol of action nor in its annex.

THIRD. The responding party also provided during the investigative proceedings the "Guide to Rights for Women Victims of Gender-Based Violence." It is established that within this guide there is a section regarding "Rights of Crime Victims of which Victims of Gender-Based Violence are also Holders" with the following subsections:

- "4. Rights of Crime Victims of which Victims of Gender-Based Violence are also Holders
- 4.1. Rights of the Victim Statute
- 4.2. Right to file a complaint
- 4.3. Right to request a protection order.
- 4.4. Right to request a European protection order
- 4.5. Right to be a party in the criminal proceedings: the offering of actions
- 4.6. Right to restitution of property, repair of damage, and compensation for harm caused
- 4.7. Right to receive information about judicial proceedings
- 4.8. Right to the protection of the dignity and privacy of the victim in the context of processes related to gender-based violence
- 4.9. Assistance to victims of crimes considered gender-based violence"

Within the subsection "Right to the protection of the dignity and privacy of the victim in the context of processes related to gender-based violence," the following content is found:

- "Organic Law 1/2004 provides for specific measures to protect the dignity and privacy of the victim. On one hand, it establishes that the personal data of the victim, their descendants, and the persons

under their guardianship or custody shall be confidential.

- The confidentiality of the new address, workplace, or schools of the children not only preserves the victim's privacy but is also an important instrument for their safety, preventing this information from reaching the knowledge of the accused. For this same purpose, the model for requesting a protection order provides that the victim may indicate an address or phone number of a third party to whom the Security Forces or judicial bodies may send communications or notifications.

- On the other hand, the Victim Statute recognizes the right of victims to the protection of their privacy in the context of criminal proceedings, and in this sense, it obliges judges, prosecutors,

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Officials in charge of the investigation and any person who intervenes or participates in the process in any way must take the necessary measures to protect the privacy of the victims and their relatives, in accordance with the provisions of the Law. In particular, regarding victims who are minors or victims with disabilities in need of special protection, they must adopt measures to prevent the dissemination of any type of information that may facilitate their identification.

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In this regard, according to the Criminal Procedure Law, the Judge may order, either ex officio or at the request of the Public Prosecutor or the victim, the adoption of any of the following measures when necessary to protect the privacy of the victim or the respect due to them or their family:

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Prohibit the disclosure or publication of information relating to the identity of the victim, of data that may facilitate their identification directly or indirectly, or of those personal circumstances that have been assessed to resolve their protection needs. Prohibit the obtaining, disclosure, or publication of images of the victim or their relatives. Likewise, the Court may order, either ex officio or at the request of the victim or the Public Prosecutor, that judicial proceedings be non-public and that hearings be held behind closed doors.”

It is noted that, in the aforementioned guide, including this subsection, there is no reference to the general regulations (GDPR or LOPDGDD) or specific regulations regarding the protection of personal data (Law 7/2021), nor to the rights derived from it.

FOURTH. The administrative file of this procedure contains the submission by the defendant of two documents consisting of the rights proceedings from the General Directorate of Police and the Civil Guard, which are subsequently incorporated into the corresponding report and through which the victim of gender-based violence is informed of the rights that assist them.

Thus, regarding the Rights Proceedings of the General Directorate of Police, various rights are stated, divided into the following sections:

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Right to information

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Right to free legal assistance

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Right to integrated social assistance

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Right to protection of their person

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Labor and social security rights

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Right to receive social aid

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Access to public housing and residence for the elderly

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Rights of the foreign victim regrouped or in an irregular situation

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Within the content of these sections, there is no reference to the regulations regarding data protection, nor to the guaranteed rights derived from it.

Regarding the Rights Proceedings of the Civil Guard, the following content related to the rights that assist them is noted:

- “To be accompanied by a person of their choice from the first contact with the authorities and officials.
- To report, and obtain a certified copy of the report, and, if applicable, the procedure for filing the report and the right to provide evidence to the authorities in charge of the investigation.
- To free linguistic assistance and written translation of the copy of the report filed when they do not understand or speak any of the official languages in the place where the report is filed. Exceptionally, the written translation of the report may be replaced by an oral summary of its content.
- Once they are a party to the case, to be informed of the actions taken and to request what they deem appropriate.
- To know the procedure for obtaining legal advice and defense and, if applicable, the conditions under which it can be obtained for free.
- To participate in the process by appointing a Lawyer and Attorney or having one appointed ex officio if they are entitled to free legal assistance under Law 1/1996 and RD 2103/1996 and to exercise the civil and criminal actions that correspond or only one or the other as they deem appropriate. This right must be exercised before the opening of the oral trial.
- To waive the restitution of the thing, compensation for damage, and indemnification for the harm caused.”

Within the content of these proceedings, there is no information regarding the rights that assist them in terms of data protection, nor the regulations where they are found.

FIFTH: From the documentation provided during the course of this procedure, it is evident that at the time of the initiation of the investigation actions, there was an absence of the Data Protection Impact Assessment (DPIA) provided for in Article 35 regarding the processing carried out by the VioGén system. During the investigation actions, the defendant provided information regarding the decision to carry out a DPIA, when in June 2021, the processing was adapted in accordance with the regulations in force at that time. According to the documentation provided by the defendant, it is concluded that the realization of a DPIA is not necessary as it is not a new system nor do the circumstances of Law 7/2021 apply:

“In that factual and legal environment, the need to carry out a DPIA was not considered since it was not a new system or that the circumstances of Article 35 of the LOPDP applied.”

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THIRD: The appellant submitted, on May 10, 2024, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on the allegations set forth below.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic

Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD).

II

Response to the allegations presented

First allegation: Nullity of the sanctioning resolution.

The appellant claims that in the contested sanctioning resolution, the SECRETARY OF STATE FOR SECURITY is cited at the beginning with NIF S2816001H as responsible for the sanctioning conduct, while such responsibility should be attributed to the person holding the position of Director General of Coordination and Studies.

They argue that, although the General Administration of the State has a single legal personality, its agencies have specific competencies and responsibilities defined by regulations. They assert that Royal Decree 207/2024 and the repealed Royal Decree 734/2020 assign specific functions to the Directorate General of Coordination and Studies, which include support and advice to the Secretary of State for Security in the coordination and supervision of the State Security Forces and Corps. In this regard, they indicate that the NIF S2816001H used in the resolution does not correspond to the Directorate General of Coordination and Studies.

Similarly, they claim that, in the documentation of the processing and the activity register of the Ministry of the Interior, the person holding the position of Director General of Coordination and Studies is established as responsible for the processing.

Consequently, they argue that the incorrect attribution of the infringing conduct to the Secretary of State for Security instead of to the Directorate General of Coordination and Studies is considered a cause of nullity in accordance with Article 47 of the LPACAP, subsections c) "those that have an impossible content" and g) "Any other that is expressly established in a provision with the rank of Law."

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Contrary to what the appealing party claims, it is clearly stated in the Record of Treatment Activities (RAT) that the responsible entity for the VIOGEN system is the Secretary of State for Security, acting through the General Directorate of Coordination and Studies. This circumstance was also indicated in the FIRST PROVEN FACT of the contested resolution: Within the document related to the Record of Treatment Activities of the Ministry of the Interior, whose last update is dated 29/09/2023, it is established that the responsible entity for the treatment of the VioGén System is the Secretary of State for Security, General Directorate of Coordination and Studies (hereinafter, SEGDGCE). This provision remains in the RAT as of the date of signing this resolution, whose last update is May 2024:

https://transparencia.gob.es/transparencia/transparencia_Home/index/PublicidadActiva/OrganizacionYEmpleo/Registro-Tratamiento/RAT-MINT.html

This demonstrates that the identification of the Secretary of State as the responsible entity for the treatment in the sanctioning resolution is correct and is supported by the documentation in the file.

Furthermore, during the investigative actions carried out by this authority and in the course of the present sanctioning procedure, all communications were directed to the Secretary of State for Security, receiving responses and allegations from that entity, as recorded in the administrative file. This fact confirms that the responsible entity was fully informed and involved during the course of the procedure. It is worth mentioning that no objection was raised regarding the entity to which the communications were directed until the filing of the present appeal. This behavior can be interpreted under the theory of one's own acts, which prevents the adoption of contradictory behaviors throughout a procedure, especially when such behaviors may cause harm to other parties. In this case, the Secretary of State for Security raised no objections regarding the validity of the communications nor questioned the responsibility during the procedure, which implies a tacit acceptance of its role as an interested party in the initiated procedure.

Additionally, it should be noted that, during the procedure, the General Directorate of Coordination and Studies was included along with the Secretary of State as a recipient in each of the administrative acts

that were notified in the following terms: SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES, OF THE MINISTRY OF THE INTERIOR.

The inclusion of the Directorate together with the SEE indicates that the recipient of such communications was aware of which specific body within the recipient's structure was affected by the resolution. If the SEE had deemed that the notification was not specifically directed to the competent body dependent on it that was mentioned in the act itself, it could only have clearly deduced the true nature and referred the administrative act to that body, which in fact seems to have occurred, as deduced from the very filing of the present appeal.

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On the other hand, the appellant's allegation that the resolution has an impossible content cannot be favorably accepted. As the Supreme Court has repeatedly indicated, defects of full nullity must be subject to a strict interpretation. The case of nullity due to impossible content refers to acts that are materially or physically impossible, that are totally and originally inadequate to the physical reality on which they fall, or that contain an internal contradiction in their terms. The Supreme Court has emphasized that this specific cause of full nullity must be assessed with utmost caution, avoiding an inappropriate extension of the legal assumption.

In this regard, the appellant has not provided any argument regarding the reasons on which they consider that the resolution has impossible content. It has not been specified to what extent the resolution is materially or physically impossible to execute, nor has any internal contradiction been pointed out that would justify such nullity. Without adequate justification, the allegation lacks a solid foundation.

It follows clearly from the above that in the present case, the appealed sanctioning resolution does not possess impossible content. It is addressed to the body that is identified as responsible for data processing, according to the RAT. The coherence of the text, its content, and the correct identification of the Secretary of State for Security along with the General Directorate of Coordination and Studies as responsible in the various communications fully legitimizes the resolution.

The appellant argues that the data processing responsible party is the General Directorate of Coordination and Studies due to the specific support and advisory functions attributed by Royal Decree 207/2024 and the repealed Royal Decree 734/2020. However, from this attribution of specific support and advisory functions, it cannot be inferred that the responsible party for personal data processing is the General Directorate of Coordination and Studies. The regulations on data protection clearly establish that the responsible party for processing is the entity or person that determines the purposes and means of personal data processing. In this context, and without prejudice to what is expressly provided by the RAT, the Secretary of State for Security, which supervises and coordinates security policies, remains the responsible party for data processing.

For the reasons stated, since the allegation of impossible content must be evaluated with extreme caution, and considering that the appellant has not presented specific arguments or evidence to support their claim, this allegation cannot be favorably accepted. The prudent and strict interpretation of full nullity, as established by the Supreme Court, requires a solid and clearly justified basis, which does not exist in the present case. Consequently, the allegation of full nullity based on an alleged "impossible content" is unfounded and must be dismissed.

Regarding the alleged nullity based on subsection g) of article 47, it is not possible for this authority to rule on it since the appeal document does not indicate the legal provision that establishes this alleged case of nullity, nor is there any reference to it.

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Second Allegation: Violation of the Accusatory Principle and Exercise of Defense.

Secondly, it is argued that the accusatory principle and the right to defense have been violated due to discrepancies between the infractions initially attributed and the sanctions ultimately imposed in the sanctioning resolution.

It is asserted that in the initiation agreement, two possible infractions were attributed to the data controller (Article 58 f) and 35 of LO 7/2021), while in the resolution, three were attributed (Article 58 f), 35, and 41 of LO 7/2021). The allegation maintains that the modification of these infractions and the lack of adequate notification violate the accusatory principle and the right to defense, constituting a breach of the rights of the interested party as established by the Supreme Court and applicable legislation.

It also points out that, although the sanctioning resolution indicates that the notification was made electronically and was considered rejected after ten days without a response, there is no record of this notification in the registers of the General Directorate of Coordination and Studies or in the Secretary of State for Security. This allegation, however, is refuted after checking the acknowledgment of receipt corresponding to the notification of the proposed resolution that is part of the administrative file. In this acknowledgment of receipt, it clearly states "Rejection of notification due to expiration," indicating "S. DE E. DE SEGURIDAD" as the holder and "Proposed resolution" as the concept. At the bottom of this acknowledgment, it states: "issued by the Spanish Agency for Data Protection on 13/03/24 16:20 has expired due to expiration, as the established deadline for appearance has been exceeded, as of 24/03/24 00:00." As is known to the appealing party, when notification by electronic means is mandatory, as is the case here, it is understood to be rejected when ten calendar days have passed since the notification was made available without accessing its content, under the terms provided by Article 43 of the LPACAP. This rejection has the effects provided in Article 41.5 of the aforementioned regulation, specifying the circumstances of the notification attempt and the means, considering the procedure completed and continuing the process.

On the other hand, it is surprising that in the acknowledgment of receipt of the allegations submitted by the appealing party, it is listed as the representative the SECRETARY OF STATE FOR SECURITY, and yet, when this authority precisely made the notification of the proposed resolution to the cited representative with the same file number, it now claims not to have received the notification of said proposal.

In the aforementioned proposed resolution, which must be understood as fully notified by legal imperative, the interested party was granted a hearing period to present allegations regarding all the attributed infractions, including the new infractions identified by the instructor. This hearing procedure complies with the provisions of the LPACAP and specific regulations on data protection, thereby guaranteeing the right to defense.

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It should be noted that the new infringement provided for in Article 41 of LO 7/2021 was identified precisely based on the allegations presented by the same appellant. Specifically, it was the act of presenting those allegations on behalf and representation of the data controller by the DPO that prompted the instructor to propose this new infringement. This fact could only be verified during the evaluation of the initial allegations, which justifies its inclusion in the proposed resolution and, subsequently, its confirmation in the final resolution.

As indicated by the STS 1382/2020 cited by the appellant, the accusatory principle in the administrative sanctioning procedure allows the competent body to modify the legal qualification, provided that it is not based on facts different from those determined in the instruction phase and that the right to defense is respected. In the present case, the underlying facts were not altered; only the legal qualification was adjusted based on the information obtained during the procedure, while fully respecting the hearing of the interested party.

As stated in the aforementioned ruling, the Constitutional Court has recurrently addressed this issue,

among others, in rulings 29/1989 of February 6; 98/1989 of June 1; 145/1993 of April 26; 160/1994 of May 23; 117/2002 of May 20; 356/2003 of November 10 (order); 55/2006 of February 27; and 169/2012 of October 1.

“Apart from the well-known conclusion that the essential principles of Article 24 of the Constitution are transferable to the realm of the sanctioning power of the Administration, but with certain nuances (derived mainly from the fact that the administrative sanctioning procedure does not have a sharp differentiation between instruction, accusation, and decision), it is deduced from that constitutional doctrine that, without prior hearing on the matter, no sanction can be imposed for facts or legal perspectives that have not been or could not have been fully debated, which means:

1.º.- That the sanctioning resolution cannot alter, without prior hearing of the accused, the factual account contained in the proposed resolution.

2.º.- That the legal qualification of the infringement cannot be altered in the sanctioning resolution, without prior hearing.

3.º.- That the imposition of a sanction, without prior hearing, different from that contemplated in the proposed resolution is not incompatible with the right to defense, provided that the legal qualification of the imputed fact is not altered and the sanction falls within the margins corresponding to the sanctioning type.”

Taking into account this jurisprudential doctrine, we can affirm that, in the present case:

- The legally established procedure was followed, sending the proposed resolution to the Secretary of State for Security, to the data controller, and at the same time to the representative as indicated in the acknowledgment of receipt. Consequently, that entity could have been aware of the imputed facts as they appear in the proposed resolution, and the

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The sanctioning resolution did not alter the factual account contained in said proposal, which was duly notified. The lack of submission of allegations by the interested party is not due to an alteration of the factual account without their knowledge, but rather to their own omission in accessing the notified act.

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The legal qualification of the infractions attributed in the resolution proposal remained consistent in the final sanctioning resolution. There were no changes in the legal qualification of the infractions without a prior hearing of the party under investigation. The appellant had the opportunity to review and present allegations regarding the legal qualification, although they did not do so within the established timeframe despite the proper notification being evidenced.

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The sanctioning resolution imposed penalties that remained within the margins of the sanctioning type and did not alter the legal qualification of the alleged facts in any case. The proposal for resolution and the final resolution aligned in terms of the applicable infractions and sanctions, and the infraction was based precisely on a fact that occurred during the processing of the procedure itself, which was the submission of allegations against the initiation agreement.

In summary, as evidenced by the acknowledgment of receipt mentioned, the Secretary of State for Security duly received the notification, and the fact that the notification was not accessed does not invalidate the administrative procedure initiated by the present authority. The lack of response to the notification does not imply a lack of notification, but rather an omission on the part of the recipient to review and respond within the established timeframe. For the reasons stated, the allegation of violation of rights is unfounded and must also be dismissed.

Third allegation: Compliance with information to victims. The third allegation asserts that there is not a total absence of information to the interested parties regarding data protection and that the obligation to inform individuals whose personal data is processed through the VioGén System is fulfilled. This allegation is fundamentally based on the following assertions:

It is noted that there are victims of gender-based violence who do not wish to report or take any official

action, which affects the manner in which they are informed. It claims that the information procedure varies depending on whether the victim reports at police or judicial offices, or does not wish to provide their identity data. In this regard, it should be indicated that variability in information procedures according to context does not justify non-compliance with the information obligations by the data controller. The responsibility to adequately inform individuals whose data is processed is independent of the information that other data controllers may provide, given that they involve different treatments, with different purposes and other retention periods, as applicable.

In this respect, it is necessary to point out that LO 7/2021 establishes a clear and uniform obligation to inform all interested parties about the processing of their personal data. This obligation is not conditioned by the individual circumstances of each victim, but rather...

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must be fulfilled consistently to guarantee the data protection rights of all affected individuals.

Moreover, the obligation to inform becomes even more necessary when it comes to vulnerable individuals such as victims of gender-based violence, as these individuals face significantly greater risks to their rights and freedoms due to their vulnerable situation. The lack of information can lead to situations where their data is misused, exposing them to additional risks and compromising their safety. Due to the additional risks they face, it is essential to exercise utmost care when informing victims of gender-based violence about the processing of their personal data. The information must be provided in a manner that is easily understandable and accessible, taking into account their situation and any possible barriers that may exist. Likewise, victims have the right to be informed clearly and consistently about the processing of their personal data, regardless of whether they report to police or judicial authorities, or if they do not wish to provide their data. The fact that some victims do not wish to report or take official actions does not exempt the data controller from fulfilling the obligation to inform. There are mechanisms to provide this information in an accessible and understandable manner, regardless of the individual circumstances of the victims. On the other hand, the existence of special circumstances does not justify the omission or insufficiency of information to other victims who do wish to exercise their data protection rights.

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It is noted that there are different data controllers in cases of gender-based violence, including judicial authorities, the Public Prosecutor's Office, police bodies, and the VioGén System. Each controller has a specific and different data processing lifecycle, affecting the way data protection rights are exercised. It is worth remembering regarding this issue that Organic Law 7/2021 clearly establishes the responsibilities of each entity in the processing of personal data. Although different entities may be involved in various aspects of data processing, this does not exempt each controller from fulfilling their specific obligation to adequately inform the individuals whose data is being processed.

In the case at hand, the existence of various data controllers in cases of gender-based violence does not exempt the data controller of the VioGén System from its specific obligation to adequately inform the interested parties about the processing of their personal data. Each entity involved must fulfill its own obligation to inform, and the existence of multiple controllers does not justify the lack of information nor reduce the individual responsibility of each one. Therefore, the claim that the diversity of controllers affects the obligation to inform is not sufficient to invalidate the identified infringement.

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It is argued that the attention and guarantee of rights must be comprehensive, but also accessible and understandable for both victims and perpetrators, adapting to the needs of each.

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to their circumstances. They indicate that outside the context of the criminal process, the exercise of data protection rights is guaranteed through the information provided by the data controller and the system implemented. It is reaffirmed that the communication procedures to the victim regarding their level of risk and the applicable protection plan include sufficient information about the VioGén System. Furthermore, it is indicated that a system is being developed to improve the information provided to interested parties, encompassing all units of the State Security Forces and other participating entities. As previously indicated, Organic Law 7/2021 establishes that all interested parties must be informed clearly and understandably about the processing of their personal data. This obligation is not flexible depending on the "factual" situation of the victims or perpetrators. The regulation requires that the information be complete and accessible to all affected individuals, regardless of their individual circumstances.

It is true that data protection regulations require that the information provided be accessible and understandable for all interested parties, which implies adapting the information to make it easily comprehensible, but it does not justify the omission of relevant information. The obligation to inform entails providing clear details about data processing, regardless of the personal circumstances of the victims or perpetrators.

Regarding the argument that a system for improving information is underway, it should be noted that this does not remedy the identified deficiencies. The obligation to inform must be fulfilled from the very beginning, and any future improvement plan does not justify current or past non-compliance. The infringement was already committed at the moment when adequate information was not provided to the victims and perpetrators. They have the right to receive complete and accurate information about the processing of their personal data, not only when future improvements are implemented. Therefore, the existence of an improvement plan does not exempt the data controller from their obligation to have complied with the regulations from the outset.

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Finally, it is argued that the infringement due to lack of information under Article 20 of LO 7/2021 is not procedurally substantiated. It claims that according to the principles of legality and responsibility enshrined in Articles 27 and 28 of Law 40/2015, on the Legal Regime of the Public Sector, the infringement must be fully demonstrated, not based on probability, plausibility, or suspicion.

As indicated by the appealing party, the principle of legality requires that infringements be clearly defined in the law, and the principle of responsibility establishes that only those acts that conform to the previously established legal definitions can be sanctioned. In this case, the infringement due to lack of information is clearly typified in Article 20 of LO 7/2021, and the proven facts manifest a breach of this.

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obligation based on the documents and operational processes communicated to the present authority throughout the procedure.

The proven facts stated in the contested resolution clearly indicate that the required information was not provided in the protocols, annexes, or rights proceedings during the investigative actions carried out by the security forces and bodies. This lack of reference to information for the victims regarding personal data protection in key documents constitutes a full demonstration of the foundational facts of the imposed sanction.

As has been substantiated in the contested resolution, although the existence of certain information on the website of the Ministry of the Interior has been verified, the proven facts indicate that there is no reference whatsoever to information regarding personal data protection in the protocols, annexes, or rights proceedings submitted during the investigative actions carried out by the present authority and that are part of the administrative file.

Data protection regulations clearly establish that information must be provided in a complete and accessible manner to all interested parties. The availability of certain information on a website is not

sufficient to comply with the aforementioned obligation if it is not also provided in the documents and operational processes where the affected individuals interact directly with the authorities. Furthermore, considering the vulnerability of the group of victims of gender-based violence referred to earlier, which, due to the serious risks to their rights and freedoms, implies a heightened obligation to comply with the requirements.

For the reasons stated, the allegation that the infringement is not procedurally substantiated lacks legal foundation and must be dismissed.

Fourth allegation: Justification for not conducting a Data Protection Impact Assessment (DPIA). The allegation claims that the lack of a DPIA for the VioGén System is justified due to the novelty and constant evolution of data protection regulations. It is argued that, following the entry into force of the GDPR and Organic Law 3/2018, there was a transition period until the complete transposition of Directive 2016/680 in June 2021. During this period, data processing for police purposes continued under previous regulations, and significant efforts were made to adapt the processing to the new regulations when they came into force. It is emphasized that, since 2007, the VioGén System has complied with the applicable regulations and has continuously adapted.

Additionally, it is alleged that the infringement for not conducting the DPIA would be time-barred, as the initiation agreement of the sanctioning file was notified on October 23, 2023, more than two years after the entry into force of Organic Law 7/2021.

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In this regard, it should be noted that the novelty and constant evolution of legislation concerning data protection does not exempt data controllers from fulfilling the obligations imposed by the new regulations upon their entry into force. The LO 7/2021 clearly establishes that it is the responsibility of data controllers to ensure that Data Protection Impact Assessments (DPIAs) are conducted when a high risk to the rights and freedoms of individuals is identified. Compliance with these obligations cannot be conditioned by the time elapsed since the implementation of the law or by the evolution of the interpretation of the regulations.

Otherwise, and following such an interpretation, the obligation to comply with the provisions of the regulations would disappear simply due to the passage of time, which is clearly incompatible with a permanent obligation. The data protection regulations impose, in this case, a permanent obligation that is not temporally limited. If the interpretation of the appealing party were accepted, it could be argued that once a certain period has elapsed after the implementation of the law, the obligations would cease to exist, which is clearly contrary to the spirit of the legislation.

In this sense, a mere documentary adaptation of data processing in accordance with the new regulations does not replace the need to carry out a specific DPIA. DPIAs are not merely documentary adaptations; they are exhaustive processes designed to identify, assess, and mitigate specific risks associated with the processing of personal data. Without conducting a DPIA, it cannot be guaranteed that all potential risks have been adequately identified and mitigated, which constitutes a direct breach of the LO 7/2021. The lack of a DPIA, even with adaptations and security measures in place, implies that the required process to assess and mitigate specific risks has not been carried out. It is worth noting that the DPIA is a continuous process and, as indicated by the WP248 Guidelines issued by this authority, this means that controllers must continuously assess the risks created by their processing activities in order to identify when it is likely that a type of processing entails "a high risk to the rights and freedoms of individuals." In note 6 of the aforementioned WP248 Guidelines, it is stated: "It should be noted that, in order to manage risks to the rights and freedoms of individuals, such risks must be identified, analyzed, estimated, evaluated, treated (e.g., mitigated), and reviewed regularly. Therefore, risk management is a continuous and cyclical process. This management must carry out its first cycle with the initial phases of processing: before determining the means of processing (in its conception, analysis, design, prototyping, and implementation) and before executing the processing (testing and preparation/deployment). Furthermore, risk management must be repeated throughout the lifecycle of

the processing to assess and address changes that may occur in the subsequent phases (operation, maintenance, evolution, and withdrawal).”

Therefore, the obligation to conduct a DPIA is clear and must be fulfilled to ensure the adequate protection of personal data and compliance with the regulations.

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current regulations, especially considering the vulnerable group to which the processing of such data is directed in the case at hand.

Regarding the allegation that the infringement would be time-barred, this cannot be sustained either, due to the permanent nature of the imposed infringement, which consists of failing to carry out a DPIA despite being obliged to do so. In fact, it remains obliged to carry out a DPIA.

In this regard, it is appropriate to mention the Judgment of the Supreme Court of November 4, 2013, which states the following:

“In applying the statute of limitations, we must determine the starting date for the applicable two-year period, which, in accordance with Article 47.2 of the LOPD, will begin to be counted from the day the infringement was committed. This rule, similar to that established generally in Article 132 of the LRJPAC, applies in cases of completed instantaneous infringements, but requires some clarifications to determine when continued and permanent infringements should be considered committed.

The continued infringement is referred to in Article 4.6, paragraph 2, of the Procedure Regulation for the Exercise of Sanctioning Power, approved by Royal Decree 1398/1993, of August 4 (RPEPS), which establishes that ‘... the performance of a plurality of actions or omissions that infringe the same or similar administrative provisions, executed according to a preconceived plan or taking advantage of the same opportunity, shall be sanctionable as a continued infringement.’

Unlike the continued infringement, which requires a plurality of actions that infringe the same provision and thus constitutes a real concurrence of offenses, the permanent infringement does not require a concurrence of offenses but rather a single action of a lasting nature, whose unlawful content extends over time, as long as the active subject does not decide to cease their conduct.

In the field of criminal law, the differentiation between the various types of infringements is significant for determining the initial date for calculating the statute of limitations, as indicated by Article 132.1 of the Penal Code, which, alongside the general rule that the limitation periods will be computed from the day the infringement was committed, establishes specific rules for cases of continued and permanent offenses, where the periods will be computed, respectively, from the day the last infringement was committed or from when the conduct ceased. These rules and criteria from Criminal Law have been accepted in the jurisprudence of this Chamber when calculating the limitation periods for infringements.

In matters of data protection, such as the one at hand, this Chamber has distinguished, in judgments of March 7, 2006 (appeal 1728/2002) and November 20, 2007 (appeal 170/2003), between continued infringements, as defined in Article 4.6 of the aforementioned RPEPS, and permanent infringements, understood as ‘those unlawful behaviors that persist over time and are not exhausted by a single act, determining the maintenance of the situation.’

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“unlawful at the will of the author,” and the ruling of May 23, 2011 (appeal 912/2011), also contemplates a case that it qualifies as a permanent infringement, derived in that case from maintaining inaccurate data in the debtors' file after the cancellation of the debt, with the consequence of considering that the limitation period does not begin to run while the infringement is maintained.”

In the present case, we are faced with one of the so-called permanent infringements, characterized by the fact that the conduct deserving of administrative reproach persists over an extended period, and therefore the computation of the limitation period does not begin until such conduct ceases or is interrupted. Such infringements are committed while the harmful effects of such potential infringing behavior are maintained. Consequently, the injury to the protected legal interest extends over time throughout the period in which such behavior contrary to the legal order is maintained.

The failure to carry out a DPIA in the VioGén System as provided for in Article 35 of Organic Law 7/2021 and typified in Article 59.1 I) of the same regulation constitutes a permanent infringement because the unlawful conduct persists while the data processing is carried out without the required evaluation. This infringement is not exhausted in a single act; rather, it maintains an unlawful situation that persists over time. Each day that data processing is carried out without a DPIA, the risk to the rights and freedoms of the affected individuals remains, thereby prolonging the infringement.

Taking into account the permanent nature of this infringement, the limitation period cannot, as the appellant argues, be computed from the date of entry into force of Organic Law 7/2021. On the contrary, the limitation period will only begin to be computed when the infringing conduct (the lack of DPIA) has ceased. For the reasons stated, this allegation must also be dismissed.

Fifth allegation: Independence of the DPO and lack of formal notification of the infringement. The allegation asserts that the infringement attributed concerning Article 41 of Organic Law 7/2021 regarding the existence of a conflict of interest due to the DPO having submitted allegations and not the data controller was not formally notified and that there was no prior knowledge of this infringement.

It also mentions that the DPO of the Secretary of State for Security has acted as a point of contact with the AEPD due to the need to use a representation certificate to access the DEHU and send documents. In this context, it is argued that the attributed infringing conduct is based solely on the fact that the DPO signed the written allegations, which does not affect his independence nor indicate a conflict of interest. It is explained that the data controller requested reports and acted with the advice of the DPO, who sent the communications to the AEPD using his representation certificate, as he is the only one with such capacity in that Secretary.

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The allegation also mentions that the DPO of the Secretary of State for Security has acted as a point of contact with the AEPD due to the need to use a representation certificate to access the DEHU and submit documents.

Regarding the allegation of the lack of formal notification, as already indicated when refuting the second allegation, according to the acknowledgment of receipt in the file, the proposed resolution was duly communicated through the Single Enabled Electronic Address (DEHU), complying with the legal notification requirements. The lack of access or review of the notification by the recipient does not exempt its validity, as the procedures established by the LPACAP were followed.

As for the second allegation denying the existence of a conflict of interest regarding the DPO, it is worth noting that from the document itself, it can be inferred that the DPO was acting on behalf of and representing the data controller, without it being inferred that the DPO was merely acting as a point of contact or transmitter of the data controller's allegations, or as a simple advisor (advising the data controller is an internal act), especially since these allegations have a clearly exculpatory content regarding the responsibility of the data controller.

On the other hand, that the allegations were submitted by the DPO is evidenced, on one hand, by the title of the document attached in the notification: "****DOCUMENTO.1"

Likewise, each page of the written allegations is headed with the letterhead "GENERAL DIRECTORATE OF COORDINATION AND STUDIES, Area of Regulation and Data Protection, Data

Protection Officer."

Similarly, at the bottom of the document, the DPO is clearly identified as the signatory at the end of the document, stating: "THE DATA PROTECTION OFFICER DESIGNATED FOR THE SECRETARY OF STATE FOR SECURITY, A.A.A.

Finally, the electronic signature and the CSV of the document further confirm that the DPO was the one who submitted the allegations. The metadata includes:

"CSV: GEN-6727-2fa0-b8e5-2167-f1dd-07d0-7436-65ce, VALIDATION ADDRESS: ***URL.2
SIGNATORY(1): A.A.A. | DATE: 04/11/2023 10:00 | No specific action | Timestamp: 04/11/2023 10:00."

It is important to note that it is not only relevant that the DPO submitted the allegations, but that they did so on behalf of and representing the data controller, which is deduced from the content and the manner in which the allegations were presented. The submission of allegations on behalf of the data controller is a function that goes beyond internal advising, involving active defense and a statement of position in a sanctioning procedure.

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Similarly, the claim that the DPO is the only one capable of communicating with the Spanish Data Protection Agency (AEPD) is unfounded. The data controller also has the authority and legal capacity to manage communications with the AEPD. The delegation of administrative functions for managing communications does not justify the DPO assuming roles that could compromise their independence and create a conflict of interest, especially in sanctioning procedures where their impartiality must be guaranteed.

The argument that the DPO uses the representation certificate to access the DEHU and send documents due to the lack of this certificate from the data controller is an internal procedural matter that does not exempt the data controller from their obligations. The data controller can and must obtain the necessary certificates to fulfill their duties without compromising the independence of the DPO. Finally, the claim that such action constitutes merely a formal defect cannot be sustained. Data protection regulations and the organizational structure clearly establish the functions and responsibilities of the DPO and the data controller. The fact that the DPO presented the allegations, signed the document, and identified themselves as the author of the allegations suggests a conflict of interest and a lack of independence in the performance of their functions. This is not a simple procedural error, but a substantive violation that compromises the independence and integrity of the DPO. Furthermore, this is reinforced by the fact that the DPO not only presented and signed the allegations but did so on behalf of and representing the data controller, with an exculpatory character. This last aspect is where the conflict of interest lies, as the DPO cannot simultaneously inform and advise the data controller while also acting in their defense. This duality of roles in the same person, the DPO, severely compromises their independence and objectivity, which are fundamental pillars for the proper exercise of their functions in accordance with current regulations.

As a conclusion that affects all allegations, it is also worth adding that the appealing party has not refuted any of the proven facts that support the contested resolution. These facts clearly demonstrate the breaches of legal obligations and justify the imposed sanctions. Therefore, the allegations presented in the appeal cannot invalidate the sanctioning resolution, which remains firm and justified in accordance with current regulations.

Based on all the arguments made, it is therefore appropriate to also dismiss this allegation.

III

Suspension of the execution of the act

The appealing party requests, as another point, the suspension of the execution of the act until the resolution of this appeal in order to avoid serious harm to the processing carried out by this data controller, and the serious intangible harm to the work of the Directorate.

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General derived from the publicity of this resolution and because it is understood that the appeal is based on several grounds for nullity of full right.

In this regard, the suspension of the execution of the act is based on Article 117, paragraphs 1 and 2 of Law 39/2015, on the Common Administrative Procedure of Public Administrations, which allows for the suspension of the execution of a contested act in cases of damages that are impossible or difficult to repair, or when the appeal is based on grounds for nullity of full right. Such suspension requires, after a sufficiently reasoned assessment, a weighing between the harm that the suspension would cause to the public interest or to third parties and the harm caused to the appellant as a result of the immediate effectiveness of the contested act.

The suspension of the execution of the act is not possible due to the imperative need to protect the rights and interests of victims of gender-based violence. The possible harms to the General Directorate do not justify the suspension, as the risks and potential damages to the victims are of greater severity. The protection of these individuals must be prioritized, and the immediate execution of the act is necessary to guarantee their fundamental right to personal data protection, security, and well-being. Therefore, the request for suspension must be denied, and the implementation of the required corrective measures must proceed.

In this case, the weighing clearly favors the immediate execution of the act, as the interests and rights of victims of gender-based violence must be prioritized. This prevails over the alleged harm caused to the work of the General Directorate resulting from the publicity of this resolution, without the execution of the act causing any serious harm to the processing carried out by the responsible party, as claimed by the appellant. Such execution seeks precisely to mitigate the risks and protect the personal data of the victims, and its suspension could exacerbate the vulnerability of these individuals.

Notwithstanding the above, it must be recalled the sanctioning nature of the contested resolution, which implies that, as indicated by Articles 90.3 and 98 of the LPACAP, they will only be enforceable when no administrative appeal is possible, including the optional appeal for reconsideration.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the SECRETARY OF STATE FOR SECURITY against the resolution of this Spanish Agency for Data Protection issued on April 18, 2024, in file EXP202211394.

SECOND: TO NOTIFY this resolution to the SECRETARY OF STATE FOR SECURITY.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must

formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

180-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

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